

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

COUNTY OF SAN FRANCISCO,

Petitioner

VS.

MARLON WILFREDO SOTO,

Respondent

) Case Number: FCS-20-354367

) Hearing Date: August 27, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

REQUEST FOR ORDER: CHILD CUSTODY, VISITATION (PARENTING TIME)

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) Respondent Marlon Wilfredo Soto (Father) and Other Parent Gricelda Coronel Alvarez (Mother) have one minor child together, Loana (DOB 12/8/2018, age 7). The parties share joint legal and physical custody of Loana on a 2-2-5-5 schedule. (Prior orders state it is a 2-2-3 schedule, but it appears it is a 2-2-5-5 schedule, with Father having Mondays and Tuesdays, Mother having Wednesdays and Thursdays, and the parties alternating Friday after school to Monday morning school drop off).
- 2) On for hearing is Father's ex parte request, which was set on shortened time for 8/27/2025. Father stated in his ex parte request that Loana came to him with a bruise on her leg and said Mother hit her. He states there were similar incidents in the past, that there have been prior Child Protective Services (CPS) reports, and that the Court ordered in 2024 that there shall be no corporal punishment.
- 3) Mother denies hitting Loana; she states that Loana slapped Mother and ran away, crashing into the standing pantry as she turned into the hallway. Mother states she was shocked when Loana

1 slapped her and believes she is learning this type of behavior while in Father's home. Mother
2 states that Father has a history of making CPS reports (she states this is the eighth report) and
3 coaching Loana. She states the current schedule has been in place for almost 4 years and is in
4 Loana's best interest. Mother requests various orders, including an order for the parents to
5 conduct all exchanges except in the case of an emergency, an overnight right of first refusal, for
6 the parties to limit their communication (she states Father harasses her with many messages), for
7 Father to ensure Mother has access to Loana's school, medical, and dental records, and for the
8 parties not to record the other party during custody exchanges.

- 9 4) In an update declaration, Father states that Mother fails to communicate with him about important
10 issues. He states she recently delayed informing him that Loana was involved in a car accident
11 when she was a passenger in a car Mother's sister was driving. He states the accident occurred on
12 8/16/2026 and he only learned of it the next night, on 8/17/2026, when Loana began complaining
13 of neck and back pain.

14 **B. Findings and Orders**

- 15 1) This Court has jurisdiction to make child custody orders in this case under the Uniform
16 Child Custody Jurisdiction and Enforcement Act. A violation of this order may subject the party
17 in violation to civil or criminal penalties, or both. The country of habitual residence of the minor
18 child is the United States.
- 19 2) The Court finds it is in Loana's best interests to maintain the current custody and parenting time
20 orders. The parties shall cooperate to ensure that each party has full access to Loana's school,
21 medical, and dental records and shall keep each other informed of important updates regarding
22 Loana's education and health.
- 23 3) The parties shall communicate by text message only, except in the event of an emergency or an
24 urgent situation, in which case a phone call is acceptable. All communication between the parties
25 shall be peaceful and respectful and only about the child.
- 26 4) During custody exchanges, the parties shall not record or take photographs of—or permit others
27 at the custody exchanges to record or take photographs of—the other party. All custody
28 exchanges shall be brief, cordial, respectful, and peaceful.
- 29

- 1 5) Neither party shall make disparaging comments about the other party to Loana or within earshot
- 2 of the child.
- 3 6) All other requests are denied, and all prior orders not in conflict with these orders shall remain in
- 4 full force and effect.
- 5 7) The Court will prepare the Findings and Order After Hearing.